

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 23, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. ABSENT: Mr. Cook. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor moved to approve Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

Presentation of Wyoming Association of Municipalities (WAM) 2014 Innovations Awards and Community Hero Awards. Carol Intlekofer, City Clerk, reviewed awards the City of Cheyenne recently received at the annual WAM convention as follows: Innovation Awards (projects/programs) -- Development Standards Help Accommodate New Development, Mayor's Youth Council Bullying Project, Sanitation Routing Software, Roundabout Education, and Cone Zone Map; Community Hero Awards (community enhancement projects) -- Cheyenne Police Department for its Citizens Police Academy and Citizens on Patrol programs, Cheyenne Greenway Foundation, and the North Cheyenne Community Park Partners for the soft surface trail system (Community Partners involved with funding and materials assistance were: Paul Frauendienst, owner, Frauendienst Quality Homes; Dan Gregg, owner, Gregg Construction; Larry Sutherland, real estate agent, #1 Properties, and Frank Cole, local developer. Mayor Kaysen recognized City staff and members of the community present at the meeting who were involved in the projects and programs.

[CA] Minutes from Regular Meeting of the Governing Body on June 9, 2014. Motion (per Consent Agenda) carried.

Mr. Valdez declared a conflict of interest (business interest in voucher payable to Radio Station KYOY-AM) and vacated Council Chambers. Mr. Shanor moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive public comments regarding the intent of the City of Cheyenne to designate the use of excess monies from 2011-2014 1% Optional Sales Tax funds for right-of-way maintenance, for the Lake Minnehaha Phase I Project, and for prioritized energy efficiency projects in City-owned facilities. Vicki Nemecek, Assistant Director, Public

Works, noted the hearing was being held in conjunction with an affiliated agenda item (i.e. Resolution) and explained 1% Optional Sales Tax provisions regarding use of unanticipated overage money. She advised the estimated overage amount was \$863,119.00 and reviewed the proposed uses for the funds, noting the projects are listed in priority order. Upon inquiry, Ms. Nemecek and Todd Feezer, Assistant Director, Parks and Recreation Department, provided information in response to queries concerning right-of-way maintenance areas involved, equipment, staffing and budgeted funding; Lake Minnehaha Phase I and proposed Phase II, when funding is available, and facilities energy efficiency improvements to several city-owned buildings. It was noted that the governing body had prioritized 1% projects; staff had reviewed and prioritized the proposed projects for use of the overage funds, and that the administration is looking into options to acquire funding for ADA projects. Discussion included future improvements and/or re-development of the city-owned parcel of land adjacent to the southwest corner of Holliday Park, near Lincolnway and Morrie Avenue. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing. Mayor Kaysen noted the resolution affiliated with the hearing would be discussed at the next Finance Committee meeting scheduled for July 7, 2014.

ORDINANCE - Amending the City of Cheyenne's Solid Waste fee schedule established by Ordinance No. 4013 (postponed from 6/09/14). Dino Moncecchi, Spartan Management, and George Gliem, Cheyenne Landlord Association, spoke in opposition to the proposed fee increases, citing concerns with multi-family units vs. single family residential rates, financial burden on tenants residing in multi-family housing units, and cost of sanitation services vs. water and sewer services. Mr. Moncecchi suggested that fee increases be "frozen". Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Discussion included the following topics: Consultant solid waste services rate study and recommendations involving an 8% fee increase vs. staff's proposed 3.4% increase, which is based on the Consumer Price Index pursuant to ordinance (provisions require staff to prepare annual increases for governing body consideration based upon the Index); anticipated July time frame when the rate study information will be provided to City Council members; funding needed for the Happy Jack Landfill closure and expansion and Transfer Station expansion projects; increased routine operational and maintenance costs; rates assessed to multi-family units such as duplexes and apartment buildings; current status of the City's application for a landfill (expansion) variance permit through the state; demonstrating City efforts to fund the costs of solid waste operations relative to applying for state grants or loans; content and comprehensiveness of elements included in the consultant's study; meeting solid waste community needs; City Council decision to not approve rate increases last year and changes approved in assessing commercial account rates resulting in reduced revenue; City Council's responsibility relative to determining fee increases and timing of same; concern with increased rates' effect on individuals with fixed incomes, and waiting to decide upon any increases until the consultant's study information, including staff comments and recommendations, have been received and reviewed. During discussion, Jim Elias, Director of Public Works, provided detailed information in response to queries, and Mayor Kaysen advised the pending Chamber of Commerce's development fee study will not specifically include all of the sanitation cost areas. Motion to approve failed (City Clerk note: Passage of an ordinance on third and final reading requires the affirmative vote of the majority (i.e. 6 "yes" votes) of the qualified members (10 members) of the governing body). Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams.

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), to allow Service Uses, Animal Care - Hospital/Clinic in the CBD Central Business District after conditional discretionary review. Tiffany Healey, local veterinarian, spoke in support of the ordinance. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna Motion carried. Voting "yes" -- all members of the governing body present. (#4028)

ORDINANCE - Amending Ordinance No. 3980 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Ms. Williams moved to amend by substitute, seconded by Mr. Brown. It was advised the purpose of the substitute is to remove wording affiliated with the employee Wellness Program. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#4029)

ORDINANCE - Amending Ordinance No. 3981 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Ms. Williams moved to amend by substitute, seconded by Ms. Broyles. It was advised the purpose of the substitute is to remove wording affiliated with the employee Wellness Program. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#4030)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land situated in a portion of the Northeast Quarter of the Northwest Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Del-Van Storage Park Annexation (located at 5311 Dell Range Blvd. at the southwest corner of the intersection of Gysel Place and Dell Range Blvd.). Casey Palma, Steil Surveying Services, agent for the applicant, advised a request was made at the Public Services Committee to postpone the item to allow for a neighborhood meeting to be scheduled to discuss proposed development plans, noting an invitation to the meeting would also be extended to governing body members. Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Mr. Shanor moved to postpone to July 14, 2014, seconded by Ms. Broyles. Motion to postpone carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen advised the item would be reviewed at the next Public Services Committee meeting scheduled for July 8, 2014.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MU Mixed Use (County), MUB Mixed-Use Business Emphasis, and MR-1 Medium Density Residential-Established to MUE Mixed-Use Employment Emphasis for Del-Van Storage Park, being a replat of all of Goodwater Addition, Goodwater Drive, and Water Blue Lane and a portion of the Northeast Quarter of the Northwest Quarter of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Blvd., east of and adjacent to Van Buren Ave.). Casey Palma, Steil Surveying Services, agent for the applicant, advised a request was made at the Public Services Committee to postpone the item to allow for a neighborhood meeting to be scheduled to discuss proposed development plans, noting an invitation to the meeting would also be extended to governing body members. Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Mr. Shanor moved to postpone

to July 14, 2014, seconded by Dr. Rinne. Motion to postpone carried. Voting “yes” -- all members of the governing body present. Mayor Kaysen advised the item would be reviewed at the next Public Services Committee meeting scheduled for July 8, 2014.

ORDINANCE - Amending Section 5.78.030(B)(5), Business License Required, of Chapter 5.78, Towing and Wrecker Recovery Operations, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), allowing automatic irrigation to be optional for drought tolerant seeded grass landscape areas located in the LI-Light Industrial and HI-Heavy Industrial Zoning districts as initiated from the 2014 Annual Review -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Amending Sections 5.36.070, 5.36.080, 5.36.090, 5.36.110, and 5.36.120, of Chapter 5.36, Circuses, Carnivals and Amusement Rides, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Pointe, Eighth Filing, a replat of Lot 14, Block 8, The Pointe, Fifth Filing, Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, between Dorothy Lane and Michael Evans Avenue). Motion (per Consent Agenda) carried. (#5597)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Cahill Park Addition, Filing No. 2, a replat of Lot 2, Block 1, Cahill Park Addition, Cheyenne, Wyoming (located at the southeast corner of the intersection of Windmill Road and Dell Range Boulevard). Mr. Shanor moved to adopt, seconded by Ms. Williams. Mr. Shanor moved to amend to include minor technical map edits as submitted to City staff, seconded by Mr. Allen. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#5598)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Westland Holdings Addition, a replat of portions of Lots 4, 5, 6, and 7, Block 210, Original City, Cheyenne, Wyoming (located at the northeast corner of the intersection of W. 22nd Street and Snyder Avenue). Motion (per Consent Agenda) carried. (#5599)

[CA] RESOLUTION - Approving the budget of the Laramie County Community Juvenile Services Joint Powers Board for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015. Motion (per Consent Agenda) carried. (#5600)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5601)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has approved City Projects to be submitted to the State Loan and Investment Board for 2015-2016 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5602)

[CA] RESOLUTION - Authorizing the use of excess monies from 2011 through 2014 Optional One Percent Sales Tax for right-of-way maintenance, for the Lake Minnehaha Phase I Project, and for prioritized energy efficiency projects in City-owned facilities -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne supports the Town of Pine Bluffs Project to be submitted to the State Loan and Investment Board for 2013-2014 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for Del-Van Storage Park, being a replat of all of Goodwater Addition, Goodwater Drive, and Water Blue Lane and a portion of the Northeast Quarter of the Northwest Quarter of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Blvd., east of and adjacent to Van Buren Ave.) -- referred to Public Services Committee.

[CA] Contract between the City of Cheyenne and WINhealth Partners for Employee Risk Sharing Program for the term of July 1, 2014 through June 30, 2015. Motion (per Consent Agenda) carried. (#6195)

[CA] Purchase Agreement between the City of Cheyenne and Hi Country Wire and Telephone, Ltd., for the purchase, installation and training for ShoreTel Voice Over Internet Protocol (VOIP) Telephone System (State Special Distribution funds). Motion (per Consent Agenda) carried (amount not to exceed \$314,592.44). (#6196)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for the 2014-2015 Concert Season. Motion (per Consent Agenda) carried (revenue to the City - \$19,200.00). (#6197)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for Youth Education Concerts. Motion (per Consent Agenda) carried (amount not to exceed \$6,500.00). (#6198)

Lease Agreement between the City of Cheyenne and the Children's Museum of Cheyenne for the lease of City-owned property located at 206 West Lincolnway, Cheyenne, Wyoming. Amy Surdam, Board President, Children's Museum of Cheyenne, requested the item be withdrawn from the agenda, referencing a letter dated June 20, 2014 that had been submitted to governing body members requesting same, and expressed the Board is looking forward to continuing discussions with the City on a collaborative effort to move forward with the museum project. Upon query and with no objection being raised by City Council members, Mayor Kaysen stated the item was being withdrawn from the agenda.

[CA] Letter of Agreement between the Wyoming Main Street Program, the City of Cheyenne, and Cheyenne Downtown Development Authority, to promote the revitalization of the designated downtown Main Street district of the City of Cheyenne. Motion (per Consent Agenda) carried. (#6199)

[CA] Project Development and Administration Agreement between the City of Cheyenne, and WILLCO IX Development, LLLP, for elevated pedestrian walkway from the Jack R. Spiker Downtown Parking Structure to hotel facilities to be constructed within Block 392, Original City, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne, and WILLCO IX Development, LLLP, for parking spaces within the Jack R. Spiker Downtown Parking Structure and for use of an elevated pedestrian walkway from the Jack R. Spiker Downtown Parking Structure to hotel facilities to be constructed within Block 392, Original City, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Amendment Number 1 to Contract No. 5905 between the City of Cheyenne, Wyoming Department of Transportation, and the Tourism Promotion Joint Powers Board, for the Southwest Drive Railroad Quiet Zone Project (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6067 between the City of Cheyenne, Parks and Recreation Department, and L.E.R., d/b/a Renner Sports Surfaces for Martin Luther King, Jr., Park Tennis Courts (Land and Water Conservation Grant, General Park funds) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5781 between the City of Cheyenne and Ayres Associates for additional strategic grant writing services and associated preliminary engineering design required by grants to enable securing of additional grant funding for the Cheyenne West Edge (Lower Capitol Basin) Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 6041 between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, for an Owner and Construction Manager At Risk (CMAR) Guaranteed Maximum Price Agreement for added scope of services for the Municipal Pool Renovation and Expansion Project (1% Specific Purpose Sales & Use Tax, Menard property sale proceeds, one-time impact funds, Recreation mill levy grant) -- referred to Finance Committee.

[CA] Consideration of Bid #R-24-14 for furnishing one new 2014-2015, 3-4.4 cubic yard single axle dump truck for the City of Cheyenne, Street and Alley Division (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, Cheyenne, including trade-in; amount not to exceed \$102,874.00).

[CA] Consideration of Bid #R-26-14 for a contract for furnishing and installing Cisco core switches in conjunction with the Voice Over Internet Protocol (VOIP) Telephone System. Motion (per Consent Agenda) carried (accept bid from Hi Country Wire & Telephone, Arvada, Colorado; amount not to exceed \$85,004.00). (#6200)

[CA] Consideration of Bid #R-25-14 for furnishing and installing updates to the licensed microwave data communications link wireless replacements for the City of Cheyenne, Fire and Rescue Department and Traffic Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Absolute Solutions, Cheyenne; amount not to exceed \$37,982.00).

Consideration of Bid #R-22-14 for furnishing one to three medium/heavy duty, body on chassis, low floor busses with wheelchair accessibility for the City of Cheyenne, Transit Division

(partial Federal funding). Mr. Brown moved to reject the bid submitted, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body present.

Consideration of Bid #M-25-14 for a contract between the City of Cheyenne and Becker Arena Products, Inc., Savage, MN, for the removal, furnishing and installing of a New Sports Rubberized Flooring system in the City-owned Ice and Events Center (Capital Equipment fund). Mr. Brown moved to accept the bid in an amount not to exceed \$89,950.00, seconded by Ms. Broyles. Mr. Brown moved to postpone to July 14, 2014, seconded by Ms. Broyles. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation Department, stated the bids received were higher than estimated and postponing the item will allow time for staff to review the budget to determine whether funding is available. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

Consideration of Bid #M-26-14 for a contract between the City of Cheyenne, Parks and Recreation Department, and Monument Builders, Inc., for the Airport Golf Shop Grinding Room Addition (2011-2014 1% Sales Tax, Golf Capital Improvement fund). Mr. Brown moved to reject the bid submitted, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present.

Appointment of Carole J. Martin, to the Mayor’s Council for People with Disabilities. Mr. Shanor moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-Appointments of Carla Thurin, Monique Meese, Mike Sorenson, Gus Lopez, and Rob Dafoe to the Laramie County Juvenile Services Joint Powers Board. Mr. Shanor moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held July 14, 2014 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in the north 102 feet of Tracts 323 and 324, Sunnyside Addition, 7th Filing, Laramie County, Wyoming (located south of and adjacent to Rock Springs Street, east of and adjacent to Pierce Avenue, and west of and adjacent to Polk Avenue).

Announcement was made of a Public Hearing to be held July 14, 2014 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in the south ½ of Tracts 105 and 106, Sunnyside Addition, Fourth Filing, Laramie County, Wyoming (located at the northeast corner of the intersection of Monroe Avenue and Charles Street).

Announcement was made of the Appointment of James C. Fuller, to the Historic Preservation Board, to be confirmed July 14, 2014.

Announcement was made of the Re-appointment of David Ohde, to the Cheyenne Downtown Development Authority Board, to be confirmed July 14, 2014.

Under other business:

Frank Cole suggested consideration of a sidewalk extension with landscaping improvements, including fencing, to connect with the Airport Parkway bike/walkway path from Cheshire to Converse Avenue, as part of the next 1% Optional Sales Tax (5th penny) ballot question.

Appreciation was expressed to Special Projects Division staff for their assistance with the Brewfest event held over the weekend.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:50 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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